4/8/2025 - 25-E-0072; 25-G-0073 - Public Statement Hearing

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 25-E-0072, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service, and

CASE 25-G-0073, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

PUBLIC STATEMENT HEARING

DATE: APRIL 8, 2025 AT 5:30 P.M.

LOCATION: WebEx

BEFORE: ALJ TARA KERSEY

Reported by Nwamaka Dawson

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(The hearing commenced at 5:30 p.m.)

A.L.J. KERSEY: All right. On the record, I call cases 25-E-0072, proceeding on Motion of the Commission as to the Rate (sic), Charges, Rules and Regulations of the Consolidated Edison Company of New York, Inc., for Electric Service. And case 25-G-0073, Proceeding on Motion of the Commission as to the Rates, Charges, Rules, and Regulations of Consolidated Edison Company of New York, Inc., for Gas Service.

Good evening and welcome. My name is Tara Kersey. I am an administrative law judge for the Department of Public Service. Administrative law judges James Costello and Nicholas Planty are also with me here today. And together we are responsible for presiding over the hearings in these cases and the development of a complete record in the proceeding. Assisting us today are Sangeetha Kailas, Esmin Brown-Anderson, and Jermaine McLeod from the Department's Office of Consumer Services.

We are here for a public statement hearing that was noticed on March 11th, 2025. We will be holding additional virtual public statement hearings tomorrow, starting at 1 p.m. and at 5:30

p.m.

In addition, we will be scheduling in-person public statement hearings in Con Edison's service territory. A notice of those in-person public statement hearings will be issued in due course. I'll briefly provide some background information before we receive your comments.

Con Edison filed amendments to its electric and gas tariff schedules on January 31st, 2025, proposing to increase its annual electric and gas delivery revenues for the 12-month period ending December 31st, 2026. Con Edison proposes to increase its electric delivery revenues by approximately 1.6 billion, an 11.4 percent increase in total revenues, or 18 percent increase in base delivery revenues. And its annual -- and its natural gas, excuse me -- delivery revenues by approximately $440 million. A 19.1 percent increase in total revenues, or 25.1 percent increase in base delivery revenues.

The actual bill impacts of these proposed changes on any particular customer class will vary based upon revenue allocation and rate design. Under New York State law, the Public Service Commission must consider a utility's proposal and may

adopt or reject it in whole or, in part, or modify it. This hearing is being held so you can provide your comments on Con Edison proposals for the Commission's consideration.

The Public Service Commission has seven members the Chairperson, Rory Christian, and Commissioners James Alesi, David Valesky, John Maggiore, Uchenna Bright, Denise Sheehan, and Radina Valova. Three members of the Commission are with us today. Chair Rory Christian, Commissioners John Maggiore and Uchenna Bright.

Chair Christian, would you like to address the participants?

CHAIR CHRISTIAN: Thank you. Good evening, everyone. I want to first express my thanks and gratitude for you making the time and effort to be here tonight. I know we all have busy schedules, and I appreciate the interest and the focus on being here this evening. Looking forward to hearing the discussions, hearing the concerns you're going to raise. And my hope is that we can keep the discourse civil and please take cues from the ALJs and the event planners in terms of how to take turns in speaking, and tone, and other aspects of today.

But very much appreciate everyone being here. Looking forward to the conversation. And thank you all.

A.L.J. KERSEY: Thank you, Chair. Commissioner Maggiore, would you like to address the participants?

COMMISSIONER MAGGIORE: Thank you. I would just echo the Chair in thanking everyone who's turning out tonight to participate. I view the public feedback to be a really important part of this whole process. And I always like to say I'm here to listen. This is the only time you're going to hear from me, but I'm going to be paying attention to what you have to say.

This is obviously a very, you know, a particularly important matter. And so I'm going to be scrutinizing the public feedback, both what I hear myself and you know, what I read through other forms of the submission of information. So I'm really looking forward to hearing what people have to say. Thank you very much.

A.L.J. KERSEY: Thank you, Commissioner. Commissioner Bright?

COMMISSIONER BRIGHT: Thanks so much,

Judge Kersey. I would, of course, echo the Chair and Commissioner Maggiore in thanking you for being here and being a part of this process today. And really look forward to hearing your comments. And I find these public statement hearings to be extremely valuable and as part of this process, and it really helps us to understand how the Commission's decisions and the issues that come before the Commission are impacting people.

So thank you so much for being here and taking time out of your day.

A.L.J. KERSEY: Thank you, Commissioner.

As I mentioned earlier, the purpose of today's hearing is to provide you with an opportunity to tell the Commission your thoughts on Con Edison's rate proposal. This is not an evidentiary hearing where you provide testimony under oath, nor is it a question-and-answer session. Rather, it is a forum for you to provide comments for the Commission's consideration.

We have a court reporter joining us who will prepare a transcript of the hearing, which will be included in the official record of this

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proceeding. When the transcript is ready, it will be available on the Department of Public Service's website. If you prefer not to speak at the hearing, there are a variety of other ways to bring your comments to the attention of the Commission.

As indicated in the March 11th notice, you can do so through the Department's website, by regular mail, or by phone. Regardless of how comments are submitted, they will be given equal consideration.

If your comments are about existing issues with Con Edison bills or customer service, Con Edison has requested that we inform you that speakers who need assistance with individual account or customer service issues can contact Con Edison for assistance at (212) 358-3791 or via email at assist, A-S-S-I-S-T at Coned.com. Provide the name on your account, phone number, service address, and nature of your inquiry.

These channels will be monitored from 9 a.m. through 10 p.m. this evening and tomorrow, April 9th and through 5 p.m. on April 10th and 11th. Customers will receive an initial response within 24 hours. I'm just going to give you that number again.

It's (212) 358-3791.

To learn more about your bill and available bill pay assistance, you can also visit www.coned.com/billassistance. And after April 11th, customers can contact the company through existing channels found at www.coned.com/contactus.

Also, if you cannot resolve your issues with Con Edison, you can contact the Department of Public Service Customer Service helpline at 1-800-342-3377 from 8:30 a.m. to 4 p.m., Monday through Friday. You can find further information about the process on the Department's website at www.dps.ny.gov. That's www.dps.ny.gov.

Okay. We're ready to begin. And we have 38 people registered to speak. Given the number of registrants, please keep your comments to three minutes, so that we can try to ensure everyone has the opportunity to speak. When I call your name, please speak slowly and clearly, so that the court reporter can accurately capture your statement for the record. Please state your name and if you are speaking on behalf of an organization, the name of the organization.

Also, if you could drop your hands

down, we're going to be calling people in the order that they registered. So that if you are able to lower your hands, and then when we call on the name, you can either hit star 3 if you're calling by telephone or raise your hand at that time when your name is called if you are making a comment, and you are participating electronically.

Okay. We will now turn to our first speaker, who is Joanne Dunn.

MS. KAILAS: Joanne Dunn. If you have called in instead of logging in electronically, please press star 3 on your phone, so I can have your hand raised and I can unmute you. Thank you.

A.L.J. KERSEY: Okay. We will come back to Joanne Dunn. Our next speaker is Emiljiana Ulaj. And please forgive me if I pronounce anyone's name wrong. And I see -- I see you're there, and I believe you're unmuted as well, so you can go ahead.

MS. ULAJ: Thank you so much. Good afternoon. My name is Emiljiana Ulaj, and I am honored to serve as a Westchester County legislator for District 9, which includes the towns of Cortland and Ossining, and the villages of Briarcliff, Buchanan, Croton, and Ossining.

Thank you for providing us with this opportunity to share our thoughts on Con Edison's latest proposed rate increase. I am here today to voice the frustration of thousands of constituents in my district, who have had enough with Con Edison. Already excessively high electricity, gas and delivery rates, coupled with terrible customer service, and errors in billing have reached the breaking point for constituents.

Unfortunately, Con Edison is able to get away with these types of practices because they are a sanctioned monopoly. And the PSC has unfortunately not done enough to hold them accountable. The nine million customers that Con Edison serves have no other option for electricity and gas. Unlike almost every other expense in people's lives, electricity and gas are essential nonoptional services. People need to turn on the lights in their homes, and they need to heat their homes to a safe temperature. And unlike most other things people purchase, they have no other option but to obtain electricity and gas from Con Edison.

These facts, coupled with the historic burden people are facing on their finances, require

that the PSC apply strict scrutiny when reviewing Con Edison's request to increase electricity and gas rates by 11.4 percent and 13.3 percent, respectively. In just one year, we know that the hardworking rank and file unionized employees at Con Edison are not receiving double-digit increases in their salaries in one year. Any rate increase should not be approved unless Con Edison can meet a high burden of proof and show to the public that they have exhausted every other option. We know from their own filings and admissions that this is not the case.

Every year, Con Edison continues to increase the dividend that they have paid out to shareholders. And one of the justification used for the proposed rate increase is an additional increase to that dividend for shareholders once again. While Con Edison sees record profits, customers are struggling to make ends meet. Many are living paycheck to paycheck and making difficult decisions about what to pay first. I urge you to not approve rate increases that will be going to increase dividends for shareholders on the backs of hardworking people.

On the Con Edison website under

Investor Relations, they boast: Con Edison has increased dividends for 46 consecutive years. May I make a modest proposal and say that 2026 is the year the dividend finally stays flat? How can we possibly approve another dividend increase when we know how much people are struggling? There were many years in the 1990s, 2000s, and 2010s that Con Edison only increased the dividend by half of a cent per share. Half of a cent. But over the last few years, they've been increasing the dividend by a full $0.02 per share or more annually. A full 300 percent increase from the past, showing just how well the company's profits are doing.

Given that Con Edison provides an essential service, and we have allowed them a monopoly over providing the service, we need to strictly scrutinize any rate increase they propose. It is my opinion that they have not met the burden of proof justifying the proposed increase. Con Edison's customers are making tough decisions on finances and figuring out where to cut costs to get by. Con Edison should be doing the same rather than resorting to squeezing hardworking people more and more during tough times.

I urge the PSC to reject Con Edison's proposal outright. Thank you.

A.L.J. KERSEY: Thank you for your comment. Our next speaker is Jae Cho. Okay. We will come back.

MS. KAILAS: Jae --

A.L.J. KERSEY: Oh, go ahead.

MS. KAILAS: Jae Cho, if you have called in to this hearing, please press star 3 on your phone.

A.L.J. KERSEY: Okay. We'll circle back. Our next speaker is Lisa Arnold. Okay. Our next speaker is Ilda Velez.

Again, if you're calling telephonically, please press star 3. Otherwise, raise your hand, so we can locate you and unmute you. All right. Our next speaker is Elisa Capers. Our next speaker is Beth Frutkin. Our next speaker is Diana Sanchez.

Again, we will go back through these names again. Our next speaker is Leberta Deyglio. Let me spell that last name, D-E-Y-G-L-I-O. And I see you. I believe you've been unmuted. You may -- you may proceed with your comment. Are you there?

We can't hear you. But I do see that you've been unmuted. You may have to unmute yourself. It looks like you may have to unmute yourself on your end of the line as well. Oops. Looks like you're -- okay, it looks like you're unmuted, but we still can't hear you. All right. We're going to -- we're going to ask if you want to call back in. And we will -- we will come back to you.

Our next speaker is Ursula Naclerio. Our next speaker is listed as C period, P period.

MS. PHILLIPS: Hi. Good afternoon.

A.L.J. KERSEY: Hi there.

MS. PHILLIPS: So what I would like to say is --

A.L.J. KERSEY: Can you give us your name for the record, please?

MS. PHILLIPS: Right. Chels, C-H-E-L-S, Phillips, P-H-I-L-L-I-P-S.

A.L.J. KERSEY: Great. Thank you. And you may proceed.

MS. PHILLIPS: We urge you to vote "no" on the proposed electricity and gas rate increase. Electricity and gas are not luxuries. They are essential services necessary for a basic

standard of living. These services should be affordable for all. Yet they are not. Even with the New York State Assistance Program, many families do not qualify due to varying financial and family structures. Some may argue that customers can turn to the energy services companies for alternatives. However, in reality many have nonfunctioning websites, making the process feel misleading and at best, predatory at worst.

This lack of true competition leaves Con Edison with a monopoly over the utilities market, giving customers no real choice. New Yorkers are already struggling to make ends meet. Approving this rate increase will only further burden hard-working families and strain the State budget, pushing more people into financial hardship.

We urge the Department of Public Service to carefully consider the severe consequences of this decision. Rather than continuously shifting financial burden onto ratepayers, Con Edison must explore alternative revenue solutions. It is neither a sustainable nor fair business model to repeatedly increase rates, nor to suggest that customers simply use less electricity or gas. Just as it would be

unreasonable to tell struggling families to eat less if groceries are unaffordable.

We strongly urge you to vote "no" on the proposed rate increase, and to hold Con Edison accountable for finding equitable solutions that do not place an undue burden on New Yorkers. Thank you for your time.

A.L.J. KERSEY: Thank you. Thank you for your comment. I'd like to go back to Leberta Deyglio and see if -- you're unmuted right now. Go ahead and -- and speak and let's see if we can hear you.

Unfortunately, we're still not able to hear you. Again, I would just check the -- check on your end whether you're unmuted because you are unmuted on our end. Okay. It looks like now you have muted yourself on our end. I'm going to go ahead and I'm going to come back to you.

Our next speaker is Carl Ross. Okay. Our next speaker is Erica Martinez. Again, if you're appearing by phone, please press star 3 so we can identify you and unmute your line.

Our next speaker is Paula Estrella. Our next speaker is Cara Dippolito. Our next speaker

is Joan O'Brien. Our next speaker is Gayle Millstein. Our next speaker is Madeleine Mound. Our next speaker is Robert Severance. Our next speaker is Jennifer Collins. Our next speaker is Ilan Rabinovitch. Our next speaker is Charlene Pacheco. Our next speaker is Jeff Schumann. Our next speaker is Philip Foley.

I see, Mr. Schumann, you're there and you're unmuted. Please feel free to proceed.

MR. SCHUMANN: Yes. Hopefully you can hear me. My name is Jeff Schumann.

A.L.J. KERSEY: Yes.

MR. SCHUMANN: Pardon?

A.L.J. KERSEY: We can hear you perfectly.

MR. SCHUMANN: Thank you. My name is Jeff Schumann. I live in Croton-on-Hudson, and I am a Con Ed Electric customer. As a Con Ed ratepayer, I am opposed to the proposed rate hikes. I believe Con Ed can -- can and must do a better job at reducing its operating expenses. Also, any rate increase should not be approved until new policies are enacted that detail what expenses can and cannot be passed on to ratepayers.

In this regard, I'm thinking specifically about expenses relating to lobbying efforts. I also want to note that I am a community solar project participant, and there are issues with the way Con Ed determines the credits I receive for being part of that project. So I would also say that these issues also need to be resolved before any rate increase is approved. Thank you very much.

A.L.J. KERSEY: Thank you so much for your comments. I see Mr. Foley is there. You can proceed.

MR. FOLEY: My name is Phil Foley. I'm from Yonkers, New York. I'm a citizen, a taxpayer, and a Con Ed customer. Just like everybody else here, I rise in opposition to Con Ed's ridiculous double-digit proposed rate increase. But unlike most, I know that Con Ed is not asking for this increase in a vacuum. Let's cut to the chase. No one likes Con Ed. There's nothing redeemable about a monopolistic company that charges way too much for an essential thing like electricity. There's nothing good about $11,000 -- $1,100 electric bills or the dread of opening up that bill because the cost of electricity, let's face it, is too damn

high.

We all know that this double-digit ask is a farce. They'll settle for half of that. Everyone will pat each other on the back and say political fix. It should never have gotten to this though. What's even more of a farce and the reason I'm appearing and giving testimony in an open hearing for the first time ever. Is a disingenuous, ah, shucks, we did nothing wrong. It's all Con Ed's fault the attitude of the woke anti-choice Democrat leadership in New York City, New York State, and in Westchester County.

Simply put, the anti-choice Democrats cause this rate hike request through the garbage energy policy. They deserves nothing but utter contempt and disdain for their political efforts to shirk responsibility. Let me explain why. Basic economics tells us there's a supply curve and demand curve. When you limit supply, especially with an inelastic good, like electricity prices skyrocket. For their absolutely insane anti-choice policies, the anti-choice Democrats put us in this position we are in today.

It was this Commission and the anti-

choice Democrats that closed the Indian Point. Cutting out about one-eighth of all electrical generation capacity. It's the anti-choice Democrats who refused to allow us to frack upstate. It is the anti-choice Democrats that continue to deny permits for the natural gas Colonial Pipeline. And it was the anti-choice Democrats took away personal choice, whether you can bring cheap, abundant natural gas into your new home. While many of these same hypocrites have natural gas in their own homes, mind you, forcing everyone to go electric in new builds.

And it was the woke anti-choice Democrats who seek to limit choices on what car you can drive with their ridiculous anti-choice electric car mandate. Don't let it be Tesla, nowadays, because it will show the hypocrisy and throw a tantrum like a five-year-old. Look, these anti-choice Democrats are hopeless. They won't be happy until everybody is forced onto green energy. Caring not whether there's enough supply available in its staff.

Both this Commission and the New York State's anti-choice Democratic leadership to wake up and to see -- wake up and see the light. They should

realize there's no magical clean energy out there. They should reopen Indian Point, allow us to frack upstate, complete the Colonial Pipeline, and stay out of the way when consumers make their own decisions on what kind of energy they want to use in their houses and cars.

It may sound like I have a problem with green energy. Nothing is further from the truth. I want more energy choices. More supply solves this problem. Enough is enough. Thank you very much.

A.L.J. KERSEY: Thank you. Our next speaker is Joseph Francis. Actually, if I can -- I would like to go back to Leberta Deyglio. I see that she -- you're unmuted. Please proceed. We still can't -- we still are not able to hear anything on our end. I do see that you're unmuted on our end. Okay. We will come back to you again.

Our next speaker is Joseph Francis. Again, just as a reminder, if you are appearing by phone, please press star 3 so we can identify you and unmute your line. At the end, we will go through the list of names that we've called for people who haven't appeared.

Okay. Our next speaker is Julia Bernier. Okay. Our next speaker is Michael Loughlin. Our next speaker is Kayla Lewis. Our next speaker is Chris Vargo. Our next speaker is Anne Conway. Our next speaker is Douglas Booth. Jane Cross. Our next speaker is Melissa Cullens.

THE COURT REPORTER: Excuse me, Judge, Douglas Booth is there.

A.L.J. KERSEY: I'm sorry. One more time. Who is there?

THE COURT REPORTER: This is the court reporter; I just was bringing to your attention that Douglas Booth is there.

MR. BOOTH: Are you -- are you actually hearing me?

A.L.J. KERSEY: Oh, now I am. Yes. Thank you.

MR. BOOTH: Oh, well, that's -- okay.

A.L.J. KERSEY: Great.

MR. BOOTH: Now, this is strange that I'm on because I hadn't even realized that I had registered to speak.

A.L.J. KERSEY: Oh.

MR. BOOTH: And I don't know what's

going on. You know, it's kind of a crazy electronic thing that's going on here. I will say that our electric bill, because of the delivery charges, has more or less almost doubled. And it's becoming harder and harder to be able to pay for it. And I just add my voice to everyone else's. And thank you for unmuting me.

A.L.J. KERSEY: Oh. You're welcome. Thank you, Mr. Booth. Thank you for your comment.

Again, Jane, our next speaker is Jane Cross. Our next speaker is Melissa Cullens. Our next speaker is identified as R.L. Bourne.

MS. BOURNE: For me?

A.L.J. KERSEY: Yes. You've been unmuted.

MS. BOURNE: Yes. Hi. My name is Raqiba Bourne. I'm a property owner, but I also am a broker that works with multiple people in New York City, including property owners; that smaller property owners who own under six units, single family homeowners, renters, condo and co-op owners, and property management companies. And I -- I request that the rate hike is rejected. Because this rate hike is placing a disproportionate burden on all

of these people in these groups. Con Ed provides abysmal customer service. They're not particularly responsive when there's need.

And as was stated earlier, the delivery charge is sometimes higher than the usage. There should be an accounting of how the delivery charge is calculated, and also alternative processes for determining funding sources, besides onerous -- onerous pricing practices for all the groups that were named. It's not as though Con Edison is providing an optional service. It's providing an essential service for everyday habitability, lighting hallways and buildings, preparing food, heating water, in some cases, heating buildings.

And it is just making the ability to maintain properties in New York unaffordable, inhabitable, and essentially very difficult for people of, you know, everyday means to live here and to live. So there needs to be a definite review of this Con Ed rate hike and hopefully a rejection. And an alternative way to charge for these fees that is more commensurate with actual money that is earned by people in all these classes, various property owners and renters, and individual owners, and property

management companies. I don't know how people are expected to maintain their properties without a reasonable means to pay for utilities that are required in -- to have these buildings function.

So I urge that there be a review and ultimately a rejection and alternative way to deal with the rising energy costs. Thank you.

A.L.J. KERSEY: Thank you. Thank you for your comments. Our next speaker is Jason Fogarty. Our next speaker is Alyssa Couture. Our next speaker is Emily Marquez. Our next speaker is Yvette Banks.

THE COURT REPORTER: Your Honor, I have Emily Marquez unmuted.

A.L.J. KERSEY: Thank you.

MS. MARQUEZ: Hi. This is Emily. I'm sorry about that. My name is Emily Marquez. Thank you for holding these hearings and offering an opportunity for us to speak.

I am a Con Edison customer living in the Bronx. I -- I'm speaking today to urge the Commission to reject or significantly reduce the proposed electric and gas delivery rate increases. As many folks have mentioned, the cost of living is

extremely high and many people like myself are living paycheck to paycheck.

In 2024, my household lost one of two incomes, and it was the higher of the two due to a job loss, and we were unemployed for nearly half the year. This financial hit will have lasting effects. On top of that, we provide financial support to relatives in need and members -- members of our New York City community.

The cost of living in New York is already extremely high. Housing, food, transportation, and healthcare costs continue to rise. However, our paychecks are not rising to meet those demands. Adding a steep increase to our utility bills would push even more families to the brink.

While I understand the need for infrastructure and clean energy investment, these costs shouldn't fall unfairly on the backs of everyday residents like myself. Especially, without a clear demonstration of cost saving efforts by Con Edison.

I urge the Commission to consider the impact on working families and those already

stretched thin. And if an increase is approved, please ensure it's phased in carefully and paired with stronger affordability protections. As well as a demonstration of cost saving efforts by the company. Thank you so much for your time.

A.L.J. KERSEY: Thank you so much for your comments. Our next speaker is Yvette Banks. Yvette, you can proceed.

MS. BANKS: Hi. Can you hear me?

A.L.J. KERSEY: Yes. Thank you.

MS. BANKS: Okay. Thank you for having this hearing. I am a homeowner of 34 years, and Con Ed bills have nothing but gone up, up, up, up, up. Where they get the figure, the double figure that they get when normally you don't even have increases. And I just want to before my time ends agree with -- I don't agree with any rate proposed hike. Especially not due -- two digits, maybe 0.5 of one. That's about it.

I agree with the first speaker, Ursula (sic), the real estate person, and the last speaker. Con Ed needs to find other options to reduce cost to home -- to customers. Especially, I would look at the salaries, and as someone said, the dividends for

investors. There has to be other resources available to Con Ed instead of trying to throw it on the backs of the customers. We cannot afford it. I actually, for the first time, had to apply for the Energy Assistance program. I was turned down twice without even knowing that I was turned down until I called for the fourth time. Because everybody kept on sending me to a number that no one picked up or responded. I would leave messages, send emails. They would say, "Where did you send it to?" I sent it to what's on the application.

So when people say that Con Ed is not responsive to the needs of the customers, it's a thousand percent true. There is no need for such a rate hike. And why are delivery charges so expensive? Exactly how are they -- are they delivering it? Is it a horse and buggy that we don't know about? I'm sure it's not.

So please look at the -- Commissioners that are on the line and share with your fellow Commissioners that there has to be a serious review of how these increases are determined. Because I turn off my all -- all -- all things are unplugged that I don't use. In addition, I am doing -- I am

staying up after midnight to do my laundry between 12:01 a.m. and 7:59 a.m. Because allegedly it's cheaper. I don't have an air conditioner. I keep everything off until I need to use it, and I still can't afford the bill.

So please, do not make an increase because the average of us users, we cannot afford it. We don't get those type of increases for the jobs that we have, if we even have a job. So please do not make any increases because you're going to hurt us even further. You know we can't burn a fire for heat. We can't do that.

So please review the situation carefully. And thank you for allowing me to speak. And again, I agree with all others. Do not make -- allow this increase. We can't afford it. We truly cannot. And thank you.

A.L.J. KERSEY: Thank you. Thank you for your comments. At this person -- at this time, I'd like to see if Leberta Deyglio is on the line? I had seen that the hand was raised.

Okay. I'm going to run through our list again. I'm going to -- I'm going to read through the names and then if you're on there again,

star 3 if you are appearing by phone. Or otherwise, please raise your hand. Joanne Dunn, Jae Cho, Lisa Arnold, Ilda Velez, Elisa Capers, Beth Frutkin, Diana Sanchez, Leberta Deyglio, Ursula Naclerio, Carl Ross, Erika Martinez, Paula Estrella, Cara Dippolito, Joan O'Brien, Gayle Millstein, Madeleine Mound, Robert Severance, Jennifer Collins, Ilan Rabinovitch, Charlene Pacheco, Joseph Francis, Julia Bernier, Michael Loughlin, Kayla Lewis, Chris Vargo, Anne Conway, Jane Cross, Melissa Cullens, Jason Fogarty, and Alyssa Couture.

Okay. I do see that -- I do see that we've got some hands raised. And we certainly will open this up. I see we have four hands raised. And we will be -- we've got five hands raised. We will be opening this up for additional comments.

So we will start with Ola Nosseir. And if you could just say your name and spell your name and then proceed with your comments so that we have your name recorded properly for the record.

MS. NOSSEIR: Hi. My name is Ola, Nosseir, O-L-A N-O-S-S-E-I-R. Can you hear me properly?

A.L.J. KERSEY: Yes. You may proceed.

MS. NOSSEIR: Yeah, I just -- I -- I want to understand, like, what is going on with the -- with why the -- the -- the rates are increasing? And I use CleanChoice Energy and how, you know, what is the difference between what the kind of energy they're using versus Con Edison? I'd like to know that.

And -- and also, the equipment that you're using throughout, you know, the area, where is it manufactured? And is there issues with if something breaks, how quickly you can get it replaced?

A.L.J. KERSEY: Yeah. So this is not a question-and-answer session. This is a public statement hearing. So it's a time that you can make your comments heard regarding the rate cases that are in front of the Commission. You can find out more about those rate cases by getting on the Department of Public Services' website. And you can find -- our website is www.dps.ny.gov. And on that website you can search for the case numbers for these two cases. It's 25-E-0072, and 25-G-0073.

But this isn't -- this isn't a proceeding at which we would respond to your specific

questions.

MS. NOSSEIR: I understand. Thank you.

A.L.J. KERSEY: No problem. Okay. So we're going to move on to the next -- the next commenter. It's A. Johnson. We see your hand raised. Actually, yep, A. Johnson. We could unmute them. Okay.

MS. JOHNSON: Good evening, everyone. My name is Adrianne Johnson. That's A-D-R-I-A-N-N-E. And Johnson like the baby powder. And I am asking the Commission to please do reject this rate hike. I -- I noticed on my bill that the delivery charges are two to three times higher than the supply charges. And we just finished paying a 12 percent increase that was enacted in 2023.

So I'm wondering if Con Ed is trying to set a precedent, so that when one rate increase ends, they can start on another one. I also noticed that 16 percent of the 3.1 million Con Ed customers are 60 or more days behind in their payments. And that is because they are getting outrageous bills. I'm getting outrageous bills in spite of all of the cost-effective things that we are doing in -- in our

home. This is just absolutely ridiculous.

Many customers are retired or on fixed incomes. So how can they afford to constantly pay these 11 and 13 percent increases? You can't do this on the backs of other people. Also, as one of the other speakers said that this is the 51st consecutive dividend increase. I understand you want to look good to your shareholders, but in this atmosphere of tariffs and tens of thousands of people losing their jobs and everything is going to increase because of the tariffs. This is not the time to put in another increase. Like everybody else, I think Con Ed needs to do with what they have, at least for right now. We cannot do it. We cannot afford it. It is just too much on the backs of the Con Ed customers. And I thank you for letting me speak.

A.L.J. KERSEY: Thank you so much for your comments. Our next speaker is Cassondra K. That's what we have listed here. If you could just again say your name and spell it before you start your statement, please.

MS. KURTZ: Hi, Your Honor.

A.L.J. KERSEY: Hi.

MS. KURTZ: My name is Cassondra

Kurtz. It's C-A-S-S-O-N-D-R-A. And the last name Kurtz, K-U-R-T-Z.

A.L.J. KERSEY: Thank you. Please proceed.

MS. KURTZ: Thank you for your time today. I am a resident of Astoria, Queens and a small business owner in Manhattan, New York City. As a result, I am a Con Edison customer two times over. I've just learned of this hearing 20 minutes prior to its start time, so I didn't have time to put something in writing fully. But my message remains the same.

I really urge you all deny Con Edison's proposed price hike. While my statements might be anecdotal, it absolutely reflects the opinions and concerns of many New Yorkers, as we've already heard. I do not work in government. However, I work with average New Yorkers behind my barber chair every single day. And this is a constant conversation. The fact is that Con Edison has a substantially large and growing list of questions to answer.

As mentioned earlier, for example, billing $11.06 of gas supplied, but with an $81

delivery charge, or a $1.48 supplied gas with a $37.20 delivery charge. This is actually an example of my last two bills in Astoria with Con Edison. This is not only inexcusable, it's theft. When there are no other viable options, it becomes monopolized theft.

It's clear that there is a correlation of price hikes, and the $86 million in settlements that Con Edison has accrued during the last few years due to environmental violations, power outages, and other various issues. We are not responsible for the irresponsible behavior of a corporation that has us by a chokehold in New York.

We should not be forced to do our household chores in the middle of the night, in an effort to supposedly save any money. We should not fear leaving heat running in the winter, or air conditioning on in high temperatures for our pets or family members who cannot help themselves. Gas and electricity is a basic necessity, not a luxury. And for these reasons, and many more, I strongly urge you to deny the proposed price hike for Con Edison. Thank you so much.

A.L.J. KERSEY: Thank you. Our next

speaker is Christopher L. Again, if you could just spell your name. I see you're unmuted. Please proceed.

MR. LEE: Can you hear me?

A.L.J. KERSEY: Yes.

MR. LEE: Good evening, Chair Christian and Commissioners. My name is Christopher Lee. And I am a resident of Little Neck, Queens, New York. I appreciate the opportunity to speak today regarding Con Edison's proposed rate increases, which would raise electricity rates by 11.4 percent and gas rates by 13.3 percent starting in January 2026. These increases would impose significant financial burdens on residents and businesses across New York City and Westchester County. The proposed hikes would result in monthly bill increases of up to $154 for families. Further exacerbating the financial strain many households have -- are already experiencing due to inflation and rising costs of living. Seniors, low-income families, and small businesses already struggling to make ends meet would be disproportionately affected.

For example, small business owners have expressed concerns about their ability to remain

operational under such cost pressures. This is not just an affordability issue; it's a matter of economic survival for many. While Con Edison cites infrastructure improvements, clean energy investments, and grid reliability as justifications for these increases, there is insufficient transparency regarding how these funds will be allocated.

Moreover, it is alarming that these hikes come at a time when Con Edison's executives are earning multimillion dollar salaries. Passing these costs onto customers, without clear accountability, undermines public trust. Now, we understand the importance of maintaining reliable energy services and supporting clean energy initiatives. However, these goals must not come at the expense of affordability for everyday New York residents.

I urge the Commission to demand alternative solutions from Con Edison that prioritize cost efficiency, equitable distribution of costs and expanded enrollment in affordability programs for low-income customers. I join Governor Hochul, elected officials, and countless community leaders in urging the PSC to reject this proposal in its current

form. Instead, I ask you to advocate for a plan that balances the need for infrastructure investment with the financial realities faced by your constituents.

The residents of New York deserve fair rates that reflect both their needs and their ability to pay. Thank you for your time and consideration. I hope you will stand with the people of New York in rejecting these excessive rate hikes.

A.L.J. KERSEY: Thank you for your comments. I, once again, just want to remind everybody that if you are participating electronically, you can raise your hand to make a statement. If you are participating by phone, you want to dial star 3. I see we have another participant -- Mr. Lee if you could -- there we go. The participant --

MS. PERINI: Hello.

A.L.J. KERSEY: -- is identified as Gab. If you could just give us your full name.

MS. PERINI: Yes, it's Gabriella Perini.

A.L.J. KERSEY: Could you spell your last name?

MS. PERINI: Yes. It's P-E-R-I-N-I.

A.L.J. KERSEY: Wonderful. And you can proceed. Thank you.

MS. PERINI: Thank you. I feel like most of my comments are more of, like, an echo chamber in here. I've definitely, like, heard of a lot of similar points. But just wanted to note that I am opposed to the Con Ed rate increase. The customers of New York -- of New York have no choice but to leverage this energy provider. And they're becoming quickly an oligopoly, if not a monopoly.

I'm very disappointed by Con Ed's proposed rate increase, again, especially after several hikes over the past few years. You know, despite living in a very small apartment, I'm going as far now as turning off TV circuit breakers and coffee machines in a desperate attempt to try and cut back on some of these costs. You know, how can anyone manage when energy efficient options sometime are limited, especially in older buildings that might not be up to more modern standards?

You know, I have to rely on an electric stove and an AC unit for the only available heating and cooling, which means sometimes I feel forced to sacrifice daily comfort just to keep my

bill down. The approach is unsustainable and very unfair to the customers. Thank you.

A.L.J. KERSEY: Thank you for your comment. Is there anyone else on the line who would like to speak? Is there a call-in user?

We do see a call-in -- I see someone with a raised hand. Annabelle (sic) -- and I -- Annabelle I cannot see your last name, so if you could just let us know what that is, that'd be great. Looks like you're muted, Annabelle. There we go.

MR. GUZMAN: Hi. Good evening. My name is Anibal Guzman.

A.L.J. KERSEY: I --

MR. GUZMAN: A-N-I-B-A-L G-U-Z-M-A-N.

A.L.J. KERSEY: Thank you.

MR. GUZMAN: I'm a Yonkers resident, Con Ed customer. And like everyone has said here, the rates are already extremely high compared to other states. I don't see the reason why Con Ed cannot do a better job at lowering the kilowatt rate or the gas delivery rate. Like, I have a brother in Pennsylvania, he pays a quarter of what we pay here per kilowatt. I've already had to literally ration what I'm going to buy for my kids with food and --

and take that into consideration when paying my electric bill.

So I -- I strongly urge you to not approve the rate increase. Thank you.

A.L.J. KERSEY: Thank you. Thank you for your comments. Again, it looks like we have some call-in -- call-in commenters. Again, please press star 3 so that we can unmute you.

Okay. So it does look like we -- is there anyone else who'd like to speak? Okay.

Well, thank you to everyone who's provided comments this evening. I'd like to remind everyone that we'll be holding another virtual hearing -- two virtual hearings tomorrow at 1 o'clock and at 5:30. Also, as I stated earlier, we will be scheduling in-person public statement hearings in Con Edison's service territory. And a notice of those in-person public statement hearings will be issued in due course.

I want to remind everyone as well that there are other ways to comment. There are several other ways. Please refer to cases 25-E-0072 or case 25-G-0073. You can make additional comments to us through the Department's website, www.dps.ny.gov,

also by regular mail or by phone. And you can see those other ways to comment right now on your screen, if you have electronic access.

Okay. This hearing is now concluded, and we are off the record. Thank you very much and have a great evening. Thank you, everyone.

(The hearing concluded at 6:30 p.m.)

4/8/2025 - 25-E-0072; 25-G-0073 - Public Statement Hearing

STATE OF NEW YORK

I, MELLONEE MCDONALD, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 42, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 12th day of April, 2025.

NWAMAKA DAWSON, Reporter